

**Justification for Other than Full and Open Competition
Federal Acquisition Regulation (FAR) Part 6.3
Control No. 1282B125R0022**

1. Identification of the agency and the contracting activity.

- 1a. Requesting Activity Agency: San Juan National Forest
- 1b. Contracting Activity: PPS SPOC/FPO Intermountain Zone

2. The nature and/or description of the action being approved.

The East Animas compound water system has failed and has no way to regenerate its depleting water cistern as well as multiple electrical violations. The system needs new electrical lines, breakers, pumps, wiring, and a full system test in order to operate fully. This compound houses multiple hot shot fire crew personnel as well as timber operations personnel. The seasonal camp is scheduled to house 12 additional personnel in 2 weeks(April 2025) but due to these system issues, they cannot. The water system supports two bunkhouses and one maintenance facility.

At this time, one Helitac (firefighter) employee has been moved to another housing unit due to the failed water system and two engineering road crew members are having to transport in water for bathroom facilities. The transporting of water cannot continue as this takes away from other operations and will not be a feasible system fix once the additional personnel are stationed at the facility. Furthermore, with the upcoming wildfire season starting, it is critical that the five Wildland Firefighting/Hotshot crew members are staged and housed within the compound to support the area and respond to any wildfires. This camp reduces responses times to the areas and is vital to the safety of the personnel and persons in the surrounding area. Also, seven trail/timber crew members are scheduled to move into the modular building at this time as well and are critical to the ongoing timber operations within the region as well as the assistance with the wildfire response. As of today, these facilities currently do not have water and therefore will not be able to support these additional 12 personnel thus impacting the entire area.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

Assess system and repair electrical issues within the East animas compound water system to include but not limited to trenching, pulling of new wires, installation of new breakers, and overall general wiring to make the system fully operational to support the increased personnel.

4. The statutory authority permitting other than full and open competition.

41 U.S.C. 3304(a)(2), as implemented by FAR 6.302-2, titled "Unusual and compelling urgency."

5. Supporting rationale demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

The water system electrical failure will prevent the additional seasonal personnel from being housed at the compound and is critical to the response time within the area. If the issue is not resolved within the coming weeks, it will not have the capacity to house the seasonal firefighters schedule to report at the beginning of April 2025. The current contractor identified, MEDVED Global, has the electrical capabilities, expertise, and can respond immediately to assess and repair the water system, prior to the Fire Fighters and Timber crews reporting for assignment. MEDVED has worked past projects for this Forest and has knowledge of the area and facilities. They have extensive experience in new and existing construction, renovations, remodels, mobilizing quickly to assess emergencies all in various project sizes. Their experience demonstrates the ability to work on many different aspects of projects and having the knowledge of issues that can arise when coming into existing projects. They have experience in utility and water system type projects which does include electrical work as identified in this project.

7. A description of the market research conducted and the results or a statement of the reason
Market Research was not conducted.

A review of the Forest Service Contract site and found no standing IDIQ or BPA's for electrical maintenance for the San Juan National Forest. An additional search was conducted via SBA - Dynamic Small Business Search for NAICS Code 238210 for the state of Colorado. The search resulted in 255 small business's, of which included MEDVED Global.

8. Any other facts supporting the use of other than full and open competition.

Posting a solicitation to SAM.gov for 30 days would cause undo delay to get the necessary firefighter in place for the annual fire season.